

Council Meeting
December 13, 2023
Page 1

The Claremont City Council held a meeting on Wednesday, December 13, 2023, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois – Absent
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

Removing under new business section A

REPORT OF THE SECRETARY

A motion was made by Assistant Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the November 8, 2023, City Council meeting.

Mayor Girard asks that Councilor O’Hearne be removed as he was absent.

Voice vote:

O’Hearne – Abstain

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois – Absent

Mooshian - Yes

Girard - Yes
Motion carried 7-0

MAYOR'S NOTES

Mayor Girard stated Councilor Contois prepared a written letter to read to the public, Mayor Girard paraphrased what Councilor Contois wrote.

Mayor Girard presented plaques to outgoing Council members.

Sunday, December 31st First Night will kick off at 6:00pm. Buttons can be purchased at various locations around the city.

Mayor Girard stated last Wednesday evening members of the Council took a tour of the Claremont Savings Bank Community Center. Thank you to Nick, Justin, and Tim for their time.

CITY MANAGER'S REPORT

Manager Manale stated the Fire Department will be hosting Santa this coming Sunday from 9:00 a.m. to 12:00 p.m..

Manager Manale gave a thank you to the Fire Department, Parks and Rec for lights and decorations in Broad Street Park. A shout out and thank you to Councilor Limoges, Emma, and Marina for painting the Tin soldiers.

Manager Manale gave an update on the waste/water treatment plant and the energy award Claremont won.

Manager Manale gave a reminder that Route 12A Bridge closing from 7:00 a.m. to 7:00 p.m. the December 19th – December 21st.

Manager Manale thanked the parting Councilors for the years spent on the Council.

Councilor Koloski inquiries about the tax rate.

Director Mullholand explains another week before the tax bills are mailed.

Assistant Mayor Matteau asked when the bill will be due if sent out next week.

Director Mulholand explains 30 days after the tax invoices go out the bills are due.

Councilor Stone asks why the school was behind on getting their items in.

Director Mulholand stated the city did not know the answer.

Assistant Mayor Matteau asks when the rate will be released to the public.

Director Mulholand Assessing will be back in the office on Tuesday.

Appointments to Boards

**MOTION TO DIRECT CITY MANAGER TO INVESTIGATE AND
REPORT TO COUNCIL ON THE PURPOSE, STRUCTURE AND
MANAGEMENT OF CLAREMONT DEVELOPMENT AUTHORITY**

WHEREAS, the Claremont City Council adopted Chapter 2, Article II, Division 5, as part of the Claremont City Code, to create an Industrial Development Authority and enacted certain provisions within this legislation to establish this municipal body's purpose, structure as well as management; and

WHEREAS, the Claremont City Council in concert with the City Manager, in 2003, proposed several changes to the Industrial Development Authority which included renaming the body to the Claremont Development Authority and adopted an entirely new set of by-laws for this municipal entity; and

WHEREAS, the Council recently compared the pertinent sections of the City Code, as it relates to the Claremont Development Authority, as well as the current by-laws of this organization from which, there appears to be a number of inconsistencies and possible contradictions between these two foundational sources for the Claremont Development Authority; and

WHEREAS, the Council is of the firm belief that a comprehensive review of this situation is necessary to ensure that the Claremont Development Authority is operating properly within the confines of the City Code and the organization's by-laws;

THEREFORE, the Claremont City Council hereby issues this directive to **suspend the committee indefinitely** and authorizes the City Manager or his designees to perform a thorough investigation of the purpose, structure and management of the Claremont Development Authority. The Manager shall also develop a report and recommendation(s), for the Council, to address any perceived needs for updating, amending and/or creating new legislation within the City Code and/or the by-laws of the Claremont Development Authority in order to assist this body with achieving its declared purpose and charge. As part of this analysis, the City Manager may include, but not be limited to, the following issues as part of the report/recommendation(s) to be provided to the Council:

- The number of directors required for proper management/operation;
- The role of the City Council, if any, in the supervision of the Authority;
- Any revision(s) of the City Code and/or by-laws to address statutory provisions;
- The necessity to amend the City Code and/or by-laws for current operational goals.

Councilor Stone reads the motion.

Councilor Koloski stated he would have liked to have seen this in the packet.

Councilor Mooshian asks to read the printed-out version of the motion.

Councilor Stone would like to see a member of the Council sitting on the CDA board as well.

Councilor Limoges asks for confirmation that the CDA is not being disbanded but suspended and reviewed.

Councilor Koloski inquires about who wrote the motion.

Manager Manale responds; the city attorney.

Councilor Koloski asked how long this has been worked on before the Council was brought up to date

Manager Manale under the direction of Councilor Stone

Mayor Girard explains why Manager Manale felt the proper way to go about the motion was to have the City attorney write it.

Manager Manale explains he was making sure he went through the correct process with the attorney.

Councilor Koloski explains why he does not agree with the process.

Councilor Stone states the motion is straight forward and is just suspending the CDA to make sure they in compliance. Councilors should be involved in the board as well.

Councilor Koloski explains he agrees the CDA should be reviewed but does not agree with how it was gone about.

Councilor Stone there is a difference between appointing someone for 3 years.

Councilor Koloski Looking back through the RSA there is language in their own bi laws it addresses on any property leases.

Mayor Girard explains how the suspension and restructure will work.

Councilor Stone states this mechanism is only to look at ... this does not change any financially change the CDA. This will hopefully be addressed in January or February. First step in getting that ball rolling.

Roll call:

O'Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski – No

Limoges - Yes

Contois - Absent

Mooshian - Yes

Girard - Yes
Motion carried 8-0

CITIZEN'S FORUM

Mayor Girard reminds the public to please state your name and ward before speaking.

Brian Zutter Ward II – States he feels that items should be in the Packet. January 15th at CSBCC Claremont Cares will be hosting an event. Open forum discussion to voice your thoughts. 6-7 for positive growth.

Mike Tetu Ward I- Asks about any correspondence non park use of Arrowhead. Inquires if a building permit has been issued to Arrowhead. Reading the petition from 600 for the transfer station. Questions about the contract will be expiring with Decamp. Mr. Tetu asks if Bag Tags (are those issued by the City or Decamp).

Kevin Tyson Ward II reads a letter.

Mrs. Nelson Ward II- Opposing the transfer station. The transfer station decreases from 2 days a week to once a month. Reliable transfer station (statute) each town should be provided a facility. 96 hours or less depending on if there is a Holiday on that day. Read a letter because she disagrees with the Council, back to the city taking control over the transfer station

Elizebeth Cram Ward I – Questions contract for Decamp. The contract was changed. Explains her experience with the transfer station when bringing items.

Keith Raymond Ward II – As a former City Councilor I am appalled; the City Manager works for the City Council as a whole.

OLD BUSINESS

Tax Deed Follow Up

Mrs. Melcher updates the Council.

Motion to Refuse Tax Deed

The City Council, having reviewed the list of impending tax deed parcels as presented by the City's Tax Collector, hereby notifies the Tax Collector that she shall not execute a deed of the real estate to the City for the following parcels because the Council has determined in its judgment that acceptance would subject the City to undesirable obligations or liability risks, including the potential liability as an owner of property under state and federal law, which imposes strict liability on owners for environmental impairment of the real estate involved:

PAYMENT AGREEMENTS

17 PAWTUCKET AVE	118-68
17 MADISON PL	57-21-17
12 COTTAGE ST	131-166
38 WEBSTER AVE	93-30
132 ELM ST	95-74
27 CHASE ST	132-154
SLAB CITY RD	85-4

BANKRUPTCY

33 UPHAM PL	159-56-12
14 UPHAM PL	159-56-20

SELLING

131 MAIN ST	107-16
-------------	--------

ENVIRONMENTAL ASSESSMENT

13 MILL RD *	107-25-2
--------------	----------

*** 80:19-a Environmental Investigation.** – Prior to or in connection with the tax lien procedures and the tax sale procedures of RSA 80, a municipality, county or state may, at its option, on its own behalf or through its agents, enter upon the property subject to tax lien or tax sale for the purpose of conducting an environmental site assessment or environmental audit, if it gives notice of same, in the manner provided by RSA 80:38-a, to the current owner of record at least 30 days prior to entering the property or such shorter period of time as consented to by the owner after receiving such notice.

Council Meeting
December 13, 2023
Page 8

The City Council further authorizes the Tax Collector or other City official to enforce all such tax liens upon the above-listed properties, as provided by RSA 80:50 and through any other remedy provided by law.

<u>TAX DEEDING LIST FOR 2018 TAXES</u>						
<u>Location</u>	<u>Map/ Lot</u>	<u>PID</u>	<u>Owner</u>	<u>Land</u>	<u>Buildi ng</u>	<u>Total Taxes Due as of 10/25/23</u>
<u>CAT HOLE RD</u>	<u>32-1</u>	<u>3466 0</u>	<u>ARGOE MARTHA LEWIN</u>	<u>800</u>	<u>0</u>	<u>\$ 704.09</u>
<u>LAFAYETTE ST</u>	<u>107- 102-1</u>	<u>9641</u>	<u>AUGER PAUL</u>	<u>17,000</u>	<u>0</u>	<u>\$ 5,779.15</u>
<u>27 CHASE ST</u>	<u>132- 154</u>	<u>1722 0</u>	<u>BELANGER JAMES M</u>	<u>15,000</u>	<u>75,300</u>	<u>\$ 27,217.9 1</u>
<u>MAIN ST</u>	<u>120- 2-1</u>	<u>1490</u>	<u>BOURDON JD REALTY INC</u>	<u>5,300</u>	<u>0</u>	<u>\$ 2,663.51</u>
<u>13 MILL RD</u>	<u>107- 25-2</u>	<u>6302 7</u>	<u>BOURDON JD REALTY INC</u>	<u>136,40 0</u>	<u>117,80 0</u>	<u>\$ 80,288.4 4</u>
<u>8 UPHAM PL</u>	<u>159- 56-17</u>	<u>5001 7</u>	<u>BROOKS DAVID B</u>	<u>0</u>	<u>7,900</u>	<u>\$ 5,204.09</u>
<u>20 DENNISON AVE</u>	<u>129- 141-1</u>	<u>6206 1</u>	<u>BURNS DONNA</u>	<u>0</u>	<u>7,400</u>	<u>\$ 13,313.0 0</u>
<u>22 UPHAM PL</u>	<u>159- 56-24</u>	<u>5002 3</u>	<u>CARBINO SR THEODORE L ESTATE</u>	<u>0</u>	<u>11,400</u>	<u>\$ 5,988.23</u>
<u>130 BROAD ST</u>	<u>120- 149</u>	<u>4530</u>	<u>DAL ADVISORS LLC</u>	<u>79,300</u>	<u>41,700</u>	<u>\$ 38,503.3 0</u>
<u>12 LEA ST</u>	<u>143-7</u>	<u>2373 0</u>	<u>FINCH EDITH ESTATE</u>	<u>13,200</u>	<u>79,200</u>	<u>\$ 46,365.8 2</u>
<u>20 GOYETTE AVE</u>	<u>131- 255</u>	<u>2296 0</u>	<u>FINCH ROBERT E ESTATE</u>	<u>14,200</u>	<u>72,500</u>	<u>\$ 33,862.0 7</u>
<u>SLAB CITY RD</u>	<u>85-4</u>	<u>3674 5</u>	<u>FITZGERALD DONALD</u>	<u>8,500</u>	<u>0</u>	<u>\$ 4,440.85</u>

Council Meeting
December 13, 2023
Page 9

<u>132 ELM ST</u>	<u>95-74</u>	<u>1172</u> <u>0</u>	<u>GODFREY LINDA</u>	<u>17,500</u>	<u>42,900</u>	<u>\$</u> <u>19,639.8</u> <u>4</u>
<u>74 MAPLE AVE</u>	<u>142-93</u>	<u>2117</u> <u>0</u>	<u>HOULE EDWARD E</u>	<u>12,200</u>	<u>0</u>	<u>\$</u> <u>6,911.41</u>
<u>225 TWISTBACK RD</u>	<u>82-79</u>	<u>7080</u>	<u>LUCIA TIMOTHY P</u>	<u>13,900</u>	<u>26,000</u>	<u>\$</u> <u>22,906.4</u> <u>1</u>
<u>53 CONGRESS ST</u>	<u>82-37</u>	<u>7350</u>	<u>MCEACHERN TRACY</u>	<u>12,900</u>	<u>59,700</u>	<u>\$</u> <u>27,745.7</u> <u>9</u>
<u>150 WHITEWATER BROOK RD</u>	<u>17-8</u>	<u>3278</u> <u>1</u>	<u>MORIN RAYMOND</u>	<u>18,800</u>	<u>124,60</u> <u>0</u>	<u>\$</u> <u>40,639.3</u> <u>1</u>
<u>9 FIRST ST</u>	<u>121-64</u>	<u>1477</u> <u>0</u>	<u>PELLETIER JOESPH A</u>	<u>14,400</u>	<u>70,600</u>	<u>\$</u> <u>32,062.0</u> <u>8</u>
<u>19 WALNUT ST</u>	<u>119-279</u>	<u>2634</u> <u>0</u>	<u>PERRY PHILLIP F</u>	<u>15,600</u>	<u>70,600</u>	<u>\$</u> <u>31,885.2</u> <u>2</u>
<u>18 UPHAM PL</u>	<u>159-56-22</u>	<u>5002</u> <u>1</u>	<u>PICARD SAMANTHA ANN</u>	<u>0</u>	<u>20,600</u>	<u>\$</u> <u>9,116.93</u>
<u>58 PEARL ST</u>	<u>119-268</u>	<u>2623</u> <u>0</u>	<u>PRASAVATH CHANTHASONE</u>	<u>8,700</u>	<u>81,600</u>	<u>\$</u> <u>33,647.6</u> <u>5</u>
<u>159 PLEASANT ST</u>	<u>131-145</u>	<u>2233</u> <u>0</u>	<u>RIVET LOUIS G</u>	<u>15,100</u>	<u>37,900</u>	<u>\$</u> <u>18,704.1</u> <u>9</u>
<u>10 UPHAM PL</u>	<u>159-56-18</u>	<u>5001</u> <u>71</u>	<u>SMITH AMY R</u>	<u>0</u>	<u>17,100</u>	<u>\$</u> <u>8,029.16</u>
<u>1 CLEARY CT</u>	<u>120-160</u>	<u>4370</u>	<u>ST AMAND KEVIN N</u>	<u>13,300</u>	<u>42,800</u>	<u>\$</u> <u>35,731.8</u> <u>5</u>
<u>19 CENTENNIAL ST</u>	<u>108-26</u>	<u>1074</u> <u>0</u>	<u>TWIN STATE PROPERTY MAINTENANCE</u>	<u>10,600</u>	<u>28,600</u>	<u>\$</u> <u>39,440.9</u> <u>8</u>
<u>342 EAST GREEN MOUNTAIN RD</u>	<u>100-8</u>	<u>3571</u> <u>0</u>	<u>TWIN STATE PROPERTY MAINTENANCE</u>	<u>19,200</u>	<u>22,200</u>	<u>\$</u> <u>25,280.7</u> <u>4</u>
<u>139 MAIN ST</u>	<u>107-15</u>	<u>940</u>	<u>TWIN STATE PROPERTY MAINTENANCE</u>	<u>13,000</u>	<u>0</u>	<u>\$</u> <u>19,880.5</u> <u>2</u>

Council Meeting
December 13, 2023
Page 10

<u>162 MAIN ST</u>	<u>107-46</u>	<u>430</u>	<u>TWIN STATE PROPERTY MAINTENANCE</u>	<u>17,300</u>	<u>1,900</u>	<u>\$ 13,689.45</u>
<u>166 MAIN ST</u>	<u>107-47</u>	<u>440</u>	<u>TWIN STATE PROPERTY MAINTENANCE</u>	<u>13,900</u>	<u>1,900</u>	<u>\$ 10,684.23</u>
<u>170 MAIN ST</u>	<u>107-48</u>	<u>450</u>	<u>TWIN STATE PROPERTY MAINTENANCE</u>	<u>29,200</u>	<u>85,600</u>	<u>\$ 82,724.58</u>
<u>27 ELM ST</u>	<u>107-246</u>	<u>720</u>	<u>TWIN STATE PROPERTY MAINTENANCE LLC</u>	<u>8,700</u>	<u>31,400</u>	<u>\$ 36,190.88</u>
<u>11 FIRST ST</u>	<u>121-63</u>	<u>14750</u>	<u>TWIN STATE PROPERTY MAINTENANCE LLC</u>	<u>15,300</u>	<u>59,000</u>	<u>\$ 44,288.61</u>
<u>LAFAYETTE ST</u>	<u>107-92</u>	<u>9580</u>	<u>TWIN STATE PROPERTY MAINTENANCE LLC</u>	<u>35,400</u>	<u>0</u>	<u>\$ 22,151.55</u>
<u>32 LAFAYETTE ST</u>	<u>107-72</u>	<u>9290</u>	<u>TWIN STATE PROPERTY MAINTENANCE LLC</u>	<u>41,800</u>	<u>281,400</u>	<u>\$ 240,736.09</u>
<u>PAYMENT AGREEMENTS</u>						
<u>302 PLAINS RD</u>	<u>81-16</u>	<u>38890</u>	<u>FISHER KELLY</u>	<u>25,400</u>	<u>103,000</u>	<u>\$ 49,312.44</u>
<u>17 STEWART AVE</u>	<u>159-19</u>	<u>44430</u>	<u>NAGLE RICHARD A</u>	<u>15,100</u>	<u>18,200</u>	<u>\$ 4,043.10</u>
<u>17 PAWTUCKET AVE</u>	<u>118-68</u>	<u>27660</u>	<u>OUELLETTE JOSHUA</u>	<u>11,100</u>	<u>54,200</u>	<u>\$ 20,203.19</u>
<u>17 MADISON PL</u>	<u>57-21-17</u>	<u>32037</u>	<u>POLAND REBECCA A</u>	<u>0</u>	<u>13,100</u>	<u>\$ 4,309.57</u>
<u>12 COTTAGE ST</u>	<u>131-166</u>	<u>18940</u>	<u>RIZZO ANGELA</u>	<u>10,600</u>	<u>2,000</u>	<u>\$ 8,859.84</u>
<u>38 WEBSTER AVE</u>	<u>93-30</u>	<u>37930</u>	<u>RIZZO ANGELA</u>	<u>20,700</u>	<u>97,500</u>	<u>\$ 46,568.98</u>

<u>BANKRUPTCY</u>						
<u>33 UPHAM PL</u>	<u>159- 56-12</u>	<u>5001 2</u>	<u>THIBAUT DATHXE B</u>	<u>0</u>	<u>22,800</u>	<u>\$ 29,894.5 0</u>
<u>14 UPHAM PL</u>	<u>159- 56-20</u>	<u>5001 9</u>	<u>WRIGHT CAROLYN V</u>	<u>0</u>	<u>21,600</u>	<u>\$ 34,420.3 8</u>
<u>SELLING</u>						
<u>131 MAIN ST</u>	<u>107- 16</u>	<u>950</u>	<u>JOHNSON SR ALFRED R TRUSTEE</u>	<u>28,300</u>	<u>39,800</u>	<u>\$ 68,100.0 0</u>
					<u>TOTAL</u>	<u>\$ 1,352,12 9.93</u>

A motion was made by Councilor Batchelder and seconded by Assistant Mayor Matteau to

Roll call:

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Absent

Mooshian - Yes

Girard - Yes

Motion carried 8-0

Councilor Koloski inquires about the last auction and what buyer backed out.

Mrs. Melcher answers Councilor Koloski; The high bidder of 60 Central Street and paid a penalty, the vacant lot on north street also backed out. These two properties will be added to the next auction as well.

Ordinance 615 Claremont Arts, History and Culture Resources Preservation Commision

Manager Manale explains the Ordinance – is of changes of the first reading from the councilors.

A motion was made by Councilor Limoges and seconded by Councilor Stone to adopt Ordinance 615.

Mayor Girard opened public hearing no one spoke, Mayor Girard closed public hearing.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Absent

Mooshian - Yes

Girard - Yes

Motion carried 8-0

NEW BUSINESS

EPA Multi-Purpose Grant Steering Committee

Memorandum

To: City Manager; Mayor & City Council
From: Nancy Merrill
Date: 11/13/23
Re: EPA Multipurpose Grant Steering Committee

The City applied for and was awarded \$800,000 from the EPA for assessment, cleanup and reuse planning/redevelopment of priority sites along the northern side of the Sugar River: the Former Synergy or Monadnock Gas Works site (Synergy Site) and the former Joy Manufacturing/Foundry Site (Joy Site) and as needed on other adjacent properties. This grant can be utilized for up to 5 years. The Steering Committee will have responsibilities including community engagement, reuse/cleanup planning, site assessment and remediation.

From the grant, under project involvement, we indicated a Steering Committee would be established with representation from the:

City Council
Planning Board
Parks & Rec Commission
Claremont Development Authority
Conservation Commission
Claremont Soup Kitchen
Chamber of Commerce
UVLS Regional Planning Commission

The City Council would establish the Steering Committee. The Steering Committee should review inputs from the public, project engineers & agencies; make recommendations to City Council; have responsibility for hosting public meetings on the project.

The Steering Committee is not limited to this make up if the Council wants to make changes or add additional residential seats. Up to 12 seats on these types of projects is workable. Applications will be received from the Council once the Steering Committee is established. Attached is a draft Committee membership layout.



**STEERING COMMITTEE
FOR
EPA MULTI-PURPOSE GRANT**

MEMBERS

Seat 1: City Councilor

Name

Address

Claremont, NH 03743

E-mail

Apt:

Term Expires:

Seat 2: Planning Board Member

Name

Address

Claremont, NH 03743

E-mail

Seat 5: Conservation Commission

Member

Name

Address

Claremont, NH 03743

E-mail

Apt:

Term Expires:

Seat 6: Claremont Soup Kitchen

Name

Address

Claremont, NH 03743

E-mail

Seat 9: Resident

Name

Address

Claremont, NH 03743

E-mail

Apt:

Term Expires:

Seat 10: Resident

Name

Address

Claremont, NH 03743

E-mail

Council Meeting
December 13, 2023
Page 14

Apt:
Term Expires:
Seat 3: Parks & Rec Commission Member
Name
Address
Claremont, NH 03743
E-mail
Apt:
Term Expires:
Seat 4: CDA Member
Name
Address
Claremont, NH 03743
E-mail
Apt:
Term Expires:

Apt:
Term Expires:
Seat 7: Chamber of Commerce
Name
Address
Claremont, NH 03743
E-mail
Apt:
Term Expires:
Seat 8: UVLSRPC Member
Name
Address
Claremont, NH 03743
E-mail
Apt:
Term Expires:

Apt:
Term Expires:
Seat 11: Resident
Name
Address
Claremont, NH 03743
E-mail
Apt:
Term Expires:
Seat 12: Resident
Name
Address
Claremont, NH 03743
E-mail
Apt:
Term Expires:

Term: 5 Years Appointment: By City Council Election of Officers: January of Each Year Meetings: To be determined by the Committee once established Function: The Steering Committee will review inputs from the public, project engineers & agencies; make recommendations to City Council; have responsibility for hosting public meetings on the project. The City Council will establish the Steering Committee.
--

Director Merrill explains the memo for the EPA Steering Committee.

Councilor Stone asks if there is a minimum number of committee members set by RSA or federal guidelines.

Director Merrill No there is not.

Councilor Koloski states would feel more comfortable with 9 committee members.

Councilor Stone states he would feel more comfortable with between seven and 9 committee members.

Assistant Mayor Matteau agrees with decreasing the number.

Councilor Limoges agrees to keep numbers low.

Councilor Koloski states he would be ok with 7 committee members and would like to see a Councilor on the committee as well.

Councilor Batchelder agrees with Councilor Koloski about the numbers and would like to see a Councilor on the committee.

Councilor Stone states he would agree with Councilor Batchelder and Councilor Koloski.

Mayor Girard states what was agreed on.

Councilor Stone states he would like to see all appointments made by the City Council.

Councilor Koloski questions the term of five years.

Councilor Ohearn asks how many other committees have a term of five years.

Councilor Koloski states would like to see a shorter term such as 3 years.

Councilor Ohearn states he would agree on the 3 years.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to establish the Steering Committee with this make-up.

Roll call

O'Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Absent

Mooshian - Yes

Girard - Yes

Motion carried 8-0

2022 Audit Report

Diane Mullholand introduces Tammy Webb who was the Audit Manager.

Explains the high risk of potential fraud. Presents a PowerPoint. Controlled items. Credit card purchases.

Councilor Limoges states that overall, the city did ok.

Mrs. Webb responds to Councilor Limoges; yes, but took a while to get there.

Councilor Stone states the Community Center looks like it is still a big problem.

Councilor Koloski talks about the audit survey.

Ordinance 619 Signs Historic District

Mrs. Bearse explains ordinance and the changes that were made.

A motion was made by Councilor Batchelder and seconded by Assistant Mayor Matteau to adopt Ordinance 619.

Councilor Batchelder read Ordinance 619 into the record.

Roll call

O'Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Absent

Mooshian - Yes

Girard - Yes

Motion carried 8-0

Multi Year Lease for Sidewalk Equipment

Motion to Accept Multi-Year Lease for vehicles

The Claremont City Council hereby authorizes the City Manager to enter into a multi-year lease agreement 1- Sidewalk equipment for the Public Works Department in the amount not to exceed \$148,600 the expenditure for the first year of the lease being \$20,965.14 said costs have been raised and appropriated in the 2024 budget. The proposed lease agreement contains a termination clause in the event of non-appropriation of sufficient funds for any subsequent year of lease.

Director Mulholland explains the Multi Year Lease.

Councilor Stone inquires of the life expectancy of the equipment.

Director Gleason states twelve to fourteen years.

Councilor Limoges questions if the equipment can be used in multiple seasons.

Director Gleason explains the attachments and how they can certainly be multi season.

Mayor Girard asks what made Director Mulholland go with a nine-year lease.

Director Mulholland explains the payments were cheaper.

A motion was made by Councilor Stone and seconded by Councilor O’Hearne to pass the Multi Year Lease agreement.

Councilor Stone read the motion into the record.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Absent

Mooshian - Yes

Girard - Yes

Motion carried 8-0

Non-Public

A motion was made by Assistant Mayor Matteau and seconded by Councilor Stone to go into a Non-Public under RSA 91-A:3, II(c) Matters which, if discussed in public, would likely affect adversely the reputation of any person, *other than a member of the public body itself*, unless such person requests an open meeting. This exemption shall extend to include any application for assistance or tax abatement or waiver of a fee, fine or other levy, if based on inability to pay or poverty of the applicant.

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes
Koloski - Yes
Limoges - Yes
Contois - Absent
Mooshian - Yes
Girard - Yes
Motion carried 8-0

City of Claremont
Nonpublic Session Minutes
[Claremont City Council]

Date: December 13, 2023

Members Present

Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Non-Members Invited to Attend Nonpublic Session

City Manager Yoshi Manale

Motion to enter Nonpublic Session made by Assistant Mayor Matteau seconded by Councilor Stone.

Names of members and all other persons attending the Nonpublic Session:

Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian

Mayor Dale Girard
City Manager Yoshi Manale

Specific Statutory Reason cited as foundation for the nonpublic session:

_____ RSA 91-A:3, II(c) Matters *which, if discussed in public, would likely affect adversely the reputation of any person, **other than a member of the public body itself**, unless such person requests an open meeting. This exemption shall extend to include any application for assistance or tax abatement or waiver of a fee, fine or other levy, if based on inability to pay or poverty of the applicant.*

Roll Call vote to enter nonpublic session: Majority vote required
List roll

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Absent

Mooshian - Yes

Girard - Yes

Motion carried 8-0

Motion: PASSED

Entered nonpublic session at 8:10 p.m.

Description of matters discussed and decisions made (***note: any votes taken in non-public must be by roll call vote, with the vote of each member included in the minutes of the nonpublic session and should be either repeated or disclosed immediately upon exiting non-public session.***)

Discussed various City issues with City Manager.

Motion to leave nonpublic session and return to public session by Councilor O’Hearne, seconded by Councilor Batchelder. (**Majority vote by roll call.**)

List roll

Roll call

O’Hearne – Yes

Batchelder - Yes

Stone - Yes

Matteau - Yes

Koloski - Yes

Limoges - Yes

Contois - Absent

Mooshian - Yes

Girard - Yes

Motion carried 8-0

Motion: PASSED

Start recording public meeting (if applicable).

Public session reconvened at 9:14 p.m.

Note: Under RSA 91-A:3, III. *Minutes of meetings in nonpublic session shall be kept and the record of all actions shall be promptly made available for public inspection, except as provided in this section. Minutes of such sessions shall record all actions in such a manner that the vote of each member is ascertained and recorded. Minutes and decisions reached in nonpublic session shall be publicly disclosed within 72 hours of the meeting, unless, by recorded vote of 2/3 of the members present taken in public session, it is determined that divulgence of the information likely would affect adversely the reputation of any person other than a member of the public body itself, or render the proposed action ineffective, or pertain to terrorism, more specifically, to matters relating to the preparation for and the carrying out of all emergency functions, developed by local or state safety officials that are directly intended to thwart a deliberate act that is intended to result in widespread or severe damage to property or widespread injury or loss of life. This shall include training to carry out such functions. In the event of such circumstances, information may be withheld until, in the opinion of a majority of members, the aforesaid circumstances no longer apply.*

For all meetings held in nonpublic session, where the minutes or decisions were determined to not be subject to full public disclosure, a list of such minutes or decisions shall be kept and this list shall be made available as soon as practicable for public disclosure. This list shall identify the public body and include the date and time of the meeting in nonpublic session, the specific exemption under paragraph II on its face which is relied upon as foundation for the nonpublic session, the date of the decision to withhold the minutes or decisions from public disclosure, and the date of any subsequent decision, if any, to make the minutes or decisions available for public disclosure. Minutes related to a discussion held in nonpublic session under subparagraph II(d)

shall be made available to the public as soon as practicable after the transaction has closed or the public body has decided not to proceed with the transaction.

Motion made to seal these minutes? NO

Motion to adjourn at 9:14 p.m. made by Councilor O’Hearne and seconded by Councilor Batchelder.

Motion: PASSED

These minutes recorded by: Assistant Mayor Matteau

The Council reconvened out of non-public session at approximately 9:14 pm. The following portion of the public minutes were taken by Assistant Mayor Matteau.

COMMITTEE REPORTS

Council Stone reported that Policy Committee will meet again on 12/19.

Assistant Mayor Matteau reported that the Planning board approved an annexation at their 11/20 meeting, as well as a site plan approval for the new Dominos at the old gas station location next to Bernie’s. 12/11 meeting the Board approved a conversion of an office to a duplex on school street and conversion of an office on Board to five housing units, including one tourist home. The Board will be discussing how to regulate Airbnb’s in the new year and will encourage the Council to attend those important discussions.

These minutes recorded by: Assistant Mayor Matteau

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asked about establishing a capital reserve for each department that sells items; how we are enforcing permits for vendors, the fire alarm at city hall; and clearly explaining to the public about the transfer station changes.

Councilor Stone asked that someone issue a permanent permit for the menorah and the manger for the Christmas display in the park so they don’t have to deal with that annually.

These minutes recorded by: Assistant Mayor Matteau

CONSULTATION WITH LEGAL COUNSEL

None.

These minutes recorded by: Assistant Mayor Matteau

ADJOURNMENT

At 9:25 p.m., a motion was made by Councilor O’Hearne and seconded by Assistant Mayor Matteau to adjourn.

These minutes recorded by: Assistant Mayor Matteau

Respectfully Submitted,

Jamie L. Foster De Rosa
Acting Clerk to the Council